



NON-DISCLOSURE, INTELLECTUAL PROPERTY & PERFORMANCE AGREEMENT

THE PRODUCT WORKS Co. & Sambhav Vinay

This Agreement is legally binding. Please read every clause carefully before signing.

PARTIES TO THIS AGREEMENT

THE COMPANY	THE PRODUCT WORKS Co. BodhiTech – Electronic City Phase 1, Bangalore – 560100, Karnataka, India Represented by: Anurag Deyasi , Founder Email: anurag@theproductworks.in Web: theproductworks.in (hereinafter referred to as the "Company")
THE INDIVIDUAL	Sambhav Vinay Engagement Role: Intern – Software Engineering (hereinafter referred to as the "Individual")

The Company and the Individual are collectively referred to as the "Parties." This Agreement is effective as of the Individual's first day of Engagement at The Product Works.

1. PURPOSE AND SCOPE

The Individual is engaged as an intern at THE PRODUCT WORKS Co. and, in the course of such engagement, will receive access to information of a highly sensitive, proprietary, and confidential nature. This Agreement is entered into to protect the legitimate business interests of the Company and to define the rights and obligations of both Parties with respect to:

- Confidentiality and non-disclosure of all proprietary information
- Absolute assignment and ownership of intellectual property
- Restrictions on public disclosure and external communication
- Performance standards and consequences of non-performance
- Leave entitlements and compensation terms
- Full and final settlement and mid-engagement exit consequences
- Termination rights and post-termination obligations
- Remedies available to the Company in the event of breach

This Agreement applies to all information disclosed before, during, or after the Engagement, whether communicated orally, in writing, electronically, visually, or by any other means.



2. DEFINITIONS

In this Agreement, the following terms shall carry the meanings set out below:

- **"Confidential Information"** means any and all information, data, or material — in any form — that is not generally known to the public and relates to the business, technology, operations, finances, or strategy of the Company, whether or not marked as confidential.
- **"Intellectual Property" or "IP"** means all inventions, discoveries, improvements, software, code, designs, models, systems, frameworks, documentation, data, and any other work product created, conceived, or developed by the Individual in connection with the Engagement.
- **"Engagement"** means the internship arrangement between the Company and the Individual, including any extension, amendment, or continuation thereof.
- **"Work Product"** means all output, deliverables, reports, tools, models, code, or materials produced by the Individual during or in connection with the Engagement.
- **"Authorised Purpose"** means the specific tasks, projects, and duties assigned to the Individual by the Company in connection with the Engagement.
- **"Breach"** means any failure to comply with any obligation under this Agreement, whether by act, omission, or negligence.
- **"Third Party"** means any individual, entity, platform, or system that is not a party to this Agreement, including but not limited to competitors, social media platforms, AI tools, and public repositories.



3. CONFIDENTIAL INFORMATION — SCOPE AND OBLIGATIONS

The Individual acknowledges that the following categories of information constitute Confidential Information of the Company:

- Business models, revenue strategies, pricing structures, financial projections, and forecasts
- AI systems, machine learning models, neural network architectures, training pipelines, and MCP implementations
- Product roadmaps, feature specifications, UX designs, and go-to-market strategies
- Source code, algorithms, APIs, SDKs, libraries, scripts, and software repositories
- Research outputs, experimental data, prototypes, benchmarks, and evaluation results
- Client information, vendor relationships, partnership terms, and contractual details
- Internal communications, meeting recordings, strategy decks, and operating processes
- Employee and contractor details, compensation structures, and HR information
- Technical infrastructure, system architecture, cloud configurations, and security protocols
- Any work product or intellectual artefact created during the Engagement
- Any information that a reasonable person in the industry would consider confidential

The Individual shall, at all times during and after the Engagement:

- Use Confidential Information solely for the Authorised Purpose
- Not disclose, share, transfer, or communicate Confidential Information to any Third Party without prior written consent from the Founder
- Not upload, publish, or transmit Confidential Information to any external platform, including public repositories (e.g. GitHub), AI systems (e.g. ChatGPT, Gemini, Copilot), cloud storage, or open-source environments
- Not reference, describe, or discuss Company work, systems, or strategies in resumes, LinkedIn profiles, portfolios, academic submissions, interviews, or social media
- Take all reasonable precautions to prevent accidental or unauthorised disclosure
- Immediately notify the Company if the Individual becomes aware of any actual or suspected breach

Any unauthorised disclosure — whether deliberate or negligent — shall constitute a material breach of this Agreement and grounds for immediate termination without notice and without any F&F payment.



4. INTELLECTUAL PROPERTY — ABSOLUTE OWNERSHIP AND ASSIGNMENT

The Individual expressly agrees and acknowledges that all Work Product created, conceived, developed, or contributed to during the Engagement — whether independently, collaboratively, during working hours or otherwise — shall:

- Be deemed 'work made for hire' to the fullest extent permitted under applicable law
- Be the sole, exclusive, and irrevocable property of THE PRODUCT WORKS Co. from the moment of creation
- Be automatically and perpetually assigned to the Company without any further act or instrument required
- Include all associated intellectual property rights, including copyright, patent rights, trade secret rights, and moral rights

The Individual hereby irrevocably:

- Waives all moral rights in and to all Work Product
- Waives all rights of attribution, integrity, and authorship
- Waives any claim to residual rights, licence fees, or royalties
- Agrees not to challenge or contest the Company's ownership of any Work Product

The Individual shall not, at any time:

- Reuse, reproduce, or adapt any Work Product for personal projects, academic submissions, or third-party engagements
- Commercialise, licence, or sub-licence any Work Product
- Include Work Product in a public portfolio without prior written authorisation from the Founder
- Use Company tools, code, or frameworks as a basis for any external project

No rights, licences, or implied permissions to any Company IP are granted to the Individual unless explicitly documented in a separate written instrument signed by the Founder.

5. PUBLIC DISCLOSURE — ABSOLUTE PROHIBITION

The Individual shall not, under any circumstances and in any form, make public or disclose to any Third Party any information relating to the Company, its products, clients, technology, team, strategy, or operations, without prior written authorisation from the Founder. This prohibition expressly includes:

- Publishing articles, blog posts, research papers, or opinion pieces
- Posting on social media platforms (LinkedIn, X/Twitter, Instagram, Reddit, etc.)
- Uploading to public code repositories (GitHub, GitLab, Bitbucket, etc.)
- Submitting work to academic institutions or conferences
- Including Company work in personal portfolios or case studies
- Discussing Company systems, architecture, or processes in interviews or public forums
- Creating investor decks, pitch materials, or startup ventures using Company IP
- Sharing internal documents, screenshots, or recordings with any Third Party

Violation of this clause shall result in:

- **Immediate termination of the Engagement without notice**
- **Permanent forfeiture of the right to receive a Certificate of Completion or Letter of Recommendation**
- **The Company's right to seek injunctive relief and monetary damages without the requirement of proving actual loss**
- **Potential legal action under applicable Indian law, including the Information Technology Act, 2000**



6. PERFORMANCE OBLIGATIONS AND STANDARDS

The Engagement is strictly performance-based. The Individual commits to maintaining the following standards throughout the duration of the Engagement:

- Delivering work of high quality that meets or exceeds the specifications communicated by the Company
- Meeting all deadlines and milestones agreed upon at the commencement of each sprint or task cycle
- Taking full ownership of assigned tasks — proactively identifying issues and proposing solutions
- Communicating progress, blockers, and risks to the relevant team lead in a timely and transparent manner
- Maintaining professional conduct in all interactions with team members, stakeholders, and partners
- Using Company tools, systems, and resources responsibly and exclusively for Authorised Purposes
- Participating constructively in team meetings, reviews, and feedback sessions
- Continuously upskilling and adapting to the technical and operational requirements of the role

7. PERFORMANCE IMPROVEMENT PERIOD (PIP)

If the Company determines, at its sole discretion, that the Individual's performance is unsatisfactory, the Company may initiate a formal Performance Improvement Period (PIP). The PIP shall:

- Be communicated to the Individual in writing
- Define specific, measurable performance deficiencies
- Set clear, time-bound corrective actions and deliverables
- Specify a defined review period (typically 7–14 days)
- Include at least one formal check-in to assess progress

If the Individual fails to meet the standards set out in the PIP within the defined period, the Company reserves the right to terminate the Engagement immediately. **The Company's assessment of performance shall be final, binding, and not subject to appeal.**

8. LEAVE ENTITLEMENT AND LOSS OF PAY

The Individual is entitled to a maximum of **2 (two) working days of paid leave per calendar month** during the Engagement. The following conditions apply:

- All leave must be requested and approved in advance through official communication channels
- Unapproved absences shall be treated as Loss of Pay (LOP) regardless of reason
- Any leave taken beyond the 2-day monthly entitlement — even if approved — shall be treated as LOP
- LOP deductions shall be calculated on a pro-rata basis from the monthly stipend
- Habitual or excessive absence, whether approved or unapproved, may be grounds for termination
- Medical emergencies shall be considered on a case-by-case basis at the Company's sole discretion

The Company shall maintain accurate records of attendance and leave, which shall be conclusive evidence in the event of any dispute.



9. STIPEND, FULL AND FINAL SETTLEMENT, AND MID-ENGAGEMENT EXIT

The following terms govern the payment of stipend and final settlement:

- The monthly stipend shall be as specified in the Offer Letter, subject to applicable LOP deductions
- Stipend shall be disbursed on a monthly basis, subject to the Individual's satisfactory performance and attendance
- The Company reserves the right to withhold stipend in cases of breach, gross misconduct, or non-delivery
- Upon **successful completion** of the full Engagement period, Full and Final (F&F) settlement of all outstanding stipend shall be processed and disbursed within **30 (thirty) days** of the Engagement end date

Mid-Engagement Discontinuation: If the Individual elects to discontinue the Engagement before the agreed completion date — for any reason, including personal, academic, or professional — the following shall apply without exception:

- **The F&F; settlement for the calendar month in which discontinuation occurs shall be null and void**
- **No stipend shall be paid for any portion of the month in which the Individual's last working day falls**
- **This clause applies regardless of how many days in the month the Individual worked**
- **The Individual shall not be entitled to any compensation, notice pay, or severance**

Company-Initiated Early Termination for Cause: In cases where the Company terminates the Engagement for breach, misconduct, or violation of this Agreement, no F&F payment shall be made for any outstanding amount, and the Individual may additionally be liable for damages.

10. TERMINATION BY THE COMPANY

The Company reserves the right to terminate the Engagement, with or without notice, in the following circumstances:

- Any breach of confidentiality or unauthorised disclosure of Confidential Information
- Any misuse, misappropriation, or infringement of Company intellectual property
- Misrepresentation of qualifications, experience, or identity
- Gross misconduct, dishonesty, or unethical behaviour
- Continued underperformance after a PIP has been initiated
- Harassment, discrimination, or conduct detrimental to the Company's culture
- Any action that poses a reputational, legal, or operational risk to the Company
- Violation of any applicable law or regulation

In cases of material breach, termination shall take effect immediately upon written notice (including email). The Individual shall have no right to compensation, notice, or appeal.



11. CONSEQUENCES OF TERMINATION OR VOLUNTARY EXIT

Upon termination of the Engagement — whether by the Company or by the Individual — the following shall apply immediately and unconditionally:

- All access to Company systems, platforms, repositories, and communications shall be revoked immediately
- The Individual shall cease all use of Confidential Information and Company tools
- No Certificate of Completion shall be issued
- No Letter of Recommendation shall be issued
- No endorsement, reference, or validation of any kind shall be provided by the Company
- The Company may, at its sole discretion, confirm only the duration of the Engagement if required by law
- All obligations of confidentiality, IP assignment, and non-disparagement shall survive termination indefinitely
- F&F; settlement is subject to the terms of Clause 9

12. RETURN AND DESTRUCTION OF MATERIALS

Upon termination of the Engagement or upon written request from the Company at any time, the Individual shall, within 48 hours:

- Return all physical materials, devices, and assets belonging to the Company
- Permanently and irreversibly delete all digital copies of Confidential Information from all personal devices, cloud accounts, and third-party platforms
- Remove all Company repositories, code, and documentation from personal accounts
- Provide written confirmation to the Company that all materials have been returned or destroyed

Retention of any Confidential Information or Work Product beyond the permitted period shall constitute a continuing breach of this Agreement, entitling the Company to seek injunctive relief.

13. NON-SOLICITATION AND FAIR DEALING

During the Engagement and for a period of **12 (twelve) months** thereafter, the Individual shall not, directly or indirectly:

- Solicit, recruit, or induce any employee, intern, contractor, or consultant of the Company to leave or reduce their engagement with the Company
- Use Confidential Information or Company IP to directly compete with or undermine the Company's business interests
- Represent to any Third Party that the Individual has rights to any Company IP or Work Product
- Accept engagement with a direct competitor in a role that would necessarily involve use or disclosure of the Company's Confidential Information

Nothing in this clause shall prevent the Individual from obtaining general employment in the technology or product sector following the conclusion of the Engagement.



14. RESTRICTION ON USE OF EXTERNAL AI TOOLS AND SYSTEMS

The Individual acknowledges the significant risks of data leakage through AI-assisted tools. Accordingly, the Individual shall NOT, without prior written authorisation from the Company:

- Input, upload, paste, or reference any Confidential Information into any external AI system or large language model (including but not limited to ChatGPT, Google Gemini, Microsoft Copilot, Claude, or any similar tool)
- Use external AI tools to generate, modify, or evaluate any Work Product that incorporates Company data, logic, or strategy
- Store or sync Confidential Information to any unauthorised third-party cloud service (e.g. personal Google Drive, Dropbox, Notion, etc.)
- Use personal devices to access or process Confidential Information without the Company's express consent

Any breach of this clause shall be treated as a breach of Clause 3 (Confidentiality) and shall carry the same consequences, including immediate termination.

15. NON-DISPARAGEMENT

The Individual shall not, during or after the Engagement, make, publish, or cause to be published any statement — whether written, oral, or digital — that:

- Is false, misleading, or unsubstantiated with respect to the Company, its products, or its team
- Is likely to damage the reputation, goodwill, or business relationships of the Company
- Negatively characterises the leadership, culture, or practices of the Company in a public forum
- Could be construed as defamatory under applicable Indian law

This clause survives the termination or expiry of the Engagement indefinitely. Violation shall entitle the Company to seek damages and injunctive relief.

16. REMEDIES AND ENFORCEMENT

The Individual acknowledges and agrees that:

- A breach of this Agreement may cause irreparable harm to the Company for which monetary damages alone would be an insufficient remedy
- The Company shall be entitled to seek immediate injunctive or other equitable relief from a court of competent jurisdiction without the need to post a bond or prove actual loss
- The Company shall be entitled to seek full monetary damages, including loss of revenue, client losses, reputational harm, and costs of enforcement
- The Company shall be entitled to recover all legal fees and costs incurred in enforcing its rights under this Agreement
- The Company's rights and remedies under this Agreement are cumulative and in addition to, not in substitution for, any other rights or remedies available at law or in equity

The Individual expressly waives any defence based on the argument that an adequate remedy at law exists.



17. SURVIVAL OF OBLIGATIONS

The following clauses shall remain in full force and effect indefinitely after the termination, expiry, or rescission of this Agreement:

- Clause 3 — Confidentiality Obligations
- Clause 4 — Intellectual Property Ownership
- Clause 5 — Public Disclosure Prohibition
- Clause 13 — Non-Solicitation (for 12 months post-Engagement)
- Clause 14 — Restriction on External AI Tools
- Clause 15 — Non-Disparagement
- Clause 16 — Remedies

18. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed exclusively in accordance with the laws of the Republic of India. The Parties hereby irrevocably submit to the exclusive jurisdiction of the courts of **Bangalore, Karnataka** for the resolution of any dispute arising out of or in connection with this Agreement. The applicable laws include, without limitation:

- The Indian Contract Act, 1872
- The Information Technology Act, 2000 and the IT (Amendment) Act, 2008
- The Copyright Act, 1957 (as amended)
- The Trade Secrets and know-how protection principles under Indian jurisprudence
- Any other applicable statute or regulation as may be in force from time to time

19. ENTIRE AGREEMENT, AMENDMENTS, AND SEVERABILITY

This Agreement, together with the Offer Letter issued to the Individual, constitutes the entire and complete understanding between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, undertakings, and agreements, whether oral or written. The following terms additionally apply:

- No amendment, modification, or waiver of any provision of this Agreement shall be valid or binding unless made in writing and signed by the Founder of the Company
- A waiver by the Company of any breach shall not constitute a waiver of any subsequent breach or of any other provision
- If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect
- This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument
- Electronic signatures shall be deemed valid and binding for the purposes of this Agreement

SIGNATURES AND ACKNOWLEDGEMENT

By signing below, both Parties confirm that they have read, understood, and agreed to be bound by all terms and conditions of this Agreement.



Sincerely,

Anurag Deyasi

Founder, The Product Works

anurag@theproductworks.in

Date: 7th June 2026

Sambhav Vinay

Intern – Software Engineering

Signature:

Date: 12/06/2026

CONFIDENTIAL — This Agreement is private and legally binding. Unauthorised reproduction or distribution of this document is strictly prohibited.